CRIME AND PUNISHMENT

THE PRINTED CLAUSE, CENTRAL → CRIME, MORAL WRONG, AND → THE ATTRIBUTION LADDER AND → SEVEN CONDITIONS, SEVEN ABUSES → FREEDOM, DETERMINISM AND THE → THE SIX THEORY FAMILIES

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

● PRIMARY CORE FLOW | ● SUBORDINATE EXTRA | ● APPROVAL / REVIEW

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

Approval: FALSE • Pending user review • source generation g8 and all prior artifacts unchanged

00

STAGE 00

THE PRINTED CLAUSE, CENTRAL QUESTION AND OWNERSHIP FENCE

THE PRINTED CLAUSE, CENTRAL QUESTION AND OWNERSHIP FENCE | SYLLABUS (VERBATIM) | "CRIME AND PUNISHMENT | CORRUPTION, MASS VIOLENCE | GENOCIDE, CAPITAL PUNISHMENT." | ONE PAIRED CONCEPT + FOUR NAMED APPLICATIONS | THE CENTRAL QUESTION | WHEN, IF EVER, MAY A STATE DELIBERATELY IMPOSE HARM

SYLLABUS (verbatim) → "Crime and Punishment : Corruption, Mass Violence

Genocide, Capital Punishment." → ONE PAIRED CONCEPT + FOUR NAMED APPLICATIONS → THE CENTRAL QUESTION → WHEN, IF EVER, MAY A STATE DELIBERATELY IMPOSE HARM ON

SOURCE / DOCTRINE
- SYLLABUS (verbatim) → "Crime and Punishment : Corruption, Mass Violence,
- Genocide, Capital Punishment."
- ONE PAIRED CONCEPT + FOUR NAMED APPLICATIONS
- THE CENTRAL QUESTION → WHEN, IF EVER, MAY A STATE DELIBERATELY IMPOSE HARM ON
- A PERSON BECAUSE OF WHAT THAT PERSON HAS DONE -- AND

ARGUMENT / MECHANISM
- division of labour
- survive DIVISION OF
- REDISTRIBUTES but does
- LABOUR and OBEDIENCE?
- not DISSOLVE it

IMPLICATION / VERDICT
- justice, equality, liberty, dignity as ideals →
- Social and Political Ideals
- regime design and propaganda → Forms of
- gender doctrine → Gender Discrimination
- caste doctrine →

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Proportionality 1 | GENOCIDE 0 -- and still a full syllabus obligation.

01

STAGE 01

CRIME, MORAL WRONG, AND THE FIVE CRIMINALISATION FILTERS

CRIME, MORAL WRONG, AND THE FIVE CRIMINALISATION FILTERS | TWO CIRCLES THAT DO NOT COINCIDE -- AND THE | LEGAL CRIME | CONDUCT PROHIBITED AND PUNISHABLE BY A VALID CRIMINAL LAW | MORAL WRONG | CONDUCT VIOLATING A JUSTIFIED ETHICAL NORM | LEGAL BUT NOT | LEGAL AND

TWO CIRCLES THAT DO NOT COINCIDE -- AND THE NON-IDENTITY RUNS BOTH WAYS

LEGAL CRIME = conduct prohibited and punishable by a VALID CRIMINAL LAW → MORAL WRONG = conduct violating a JUSTIFIED ethical norm → A: LEGAL BUT NOT

SOURCE / DOCTRINE
- TWO CIRCLES THAT DO NOT COINCIDE -- AND THE NON-IDENTITY RUNS BOTH WAYS
- LEGAL CRIME = conduct prohibited and punishable by a VALID criminal law
- MORAL WRONG = conduct violating a JUSTIFIED ethical norm
- A: LEGAL BUT NOT
- B: LEGAL AND

ARGUMENT / MECHANISM
- THREE ACCOUNTS, THREE DIFFERENT QUESTIONS -- NOT THREE RIVALS
- ITS QUESTION
- ITS LIMITATION
- what has the law
- validity does not prove

IMPLICATION / VERDICT
- CRIMINALISATION IS ITSELF AN EXERCISE OF POWER → FIVE FILTERS
- [1] HARM .... are interests SET BACK?
- [2] RIGHTS .... does the conduct violate a right -- or would BANNING it?
- [3] PUBLIC WRONG . is this the COMMUNITY'S BUSINESS, or a private failing?
- [4] CULPABILITY .. can a FAULT ELEMENT be FAIRLY ATTRIBUTED?

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: PUNISHMENT is a SEVERITY question (Q3), NOT a criminalisation question.

02

STAGE 02

THE ATTRIBUTION LADDER AND THE TWO DEFENCES

THE ATTRIBUTION LADDER AND THE TWO DEFENCES | FOUR STEPS FROM PROHIBITED CONDUCT TO ATTRIBUTED BLAME | [1] EXTERNAL ACT OR OMISSION (ACTUS REUS) | LINKS LIABILITY TO CONDUCT, NOT TO THOUGHT | AN OMISSION REQUIRES A RELEVANT DUTY -- OTHERWISE EVERY | [2] FAULT ELEMENT (MENS REA) | GRADES ANSWERABILITY | NEGLIGENCE →

DENIES: WRONGFULNESS	DENIES: ANSWERABILITY	
IF UPHELD: no wrong was done	IF UPHELD: a wrong was done, by a not	
THIRD PARTIES: ASSISTANTS	THIRD PARTIES: the wrong REMAINS a may SHARE the justification	wrong, so RESISTANCE stays permissible

SYSTEM / DOCTRINE
- FOUR STEPS FROM PROHIBITED CONDUCT TO ATTRIBUTED BLAME
- [1] EXTERNAL ACT OR OMISSION (actus reus)
- FUNCTION: links liability to CONDUCT, not to THOUGHT
- CONTROL: an OMISSION requires a RELEVANT DUTY -- otherwise every bystander becomes a principal
- [2] FAULT ELEMENT (mens rea)

DECISIVE DISTINCTION
- CONTROL: causal contribution ALONE is NOT sufficient responsibility
- [4] LEGALITY AND FAIR NOTICE
- FUNCTION: prevents RETROSPECTIVE or INDETERMINATE condemnation
- CONTROL: legal validity STILL does not prove moral justice
- EVEN THEN, TWO ANSWERS REMAIN -- AND THEY DENY DIFFERENT THINGS

EVALUATION / TRAP
- IF UPHELD: a wrong was done, by a not
- fully-answerable agent
- THIRD PARTIES: ASSISTANTS
- THIRD PARTIES: the wrong REMAINS a may SHARE the justification
- wrong, so RESISTANCE stays permissible

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: EXCUSE. NO clinical diagnosis and NO legal test is asserted anywhere.

03

STAGE 03

SEVEN CONDITIONS, SEVEN ABUSES AND THE CAUSATION HINGE

SEVEN CONDITIONS, SEVEN ABUSES AND THE CAUSATION HINGE | SEVEN CONDITIONS A DEFENSIBLE PUNISHMENT PRESUPPOSES -- LEARN THE | THE LIST | ABUSE IT BLOCKS | A PUBLIC LAW KNOWN IN ADVANCE | RETROSPECTIVE CONDEMNATION | A VOLUNTARY ACT OR LEGALLY | PUNISHMENT OF THOUGHT, STATUS OR

CONDITION	ABUSE IT BLOCKS	
1	a PUBLIC LAW known in advance	retrospective condemnation
2	a VOLUNTARY ACT or legally	punishment of thought, status or
relevant OMISSION	identity	
3	CULPABILITY proportionate to	treating the reckless and the
the fault ladder	deliberate alike	

SYSTEM / DOCTRINE
- SEVEN CONDITIONS A DEFENSIBLE PUNISHMENT PRESUPPOSES -- LEARN THE ABUSE, NOT
- THE LIST
- ABUSE IT BLOCKS
- a PUBLIC LAW known in advance
- retrospective condemnation

DECISIVE DISTINCTION
- private vengeance in official
- PROPORTIONALITY between WRONG,
- escalation without ceiling
- RESPONSIBILITY and SANCTION
- EQUAL APPLICATION without

EVALUATION / TRAP
- CASE D caused AND
- CAUSED but NOT
- RESPONSIBLE but
- neither responsible
- did NOT directly

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: KNOWLEDGE, CAPACITY and CONTRIBUTION. Case B protects the low-level participant in MASS VIOLENCE from automatic principal liability; Case C reaches the ENABLER, the SUPERVISOR and the OFFICE-HOLDER.

04

STAGE 04

FREEDOM, DETERMINISM AND THE WORKING PENAL STANDARD

FREEDOM, DETERMINISM AND THE WORKING PENAL STANDARD | THREE POSITIONS -- EACH WITH ITS PENAL IMPLICATION AND | PENAL IMPLICATION | DESERT REQUIRES GENUINE | HARD TO RECONCILE WITH | ALTERNATIVE POSSIBILITIES | CAUSAL EXPLANATION | HARD DETERMINISM

POSITION	PENAL IMPLICATION	DIFFICULTY
LIBERTARIAN	DESERT requires genuine	hard to reconcile with
FREEDOM	ALTERNATIVE POSSIBILITIES	CAUSAL EXPLANATION
HARD DETERMINISM	BASIC DESERT undermined;	risks treating persons
PROTECTION and REHABILI	ONLY as DANGEROUS	
TATION replace blame	OBJECTS	

SYSTEM / DOCTRINE
- THREE POSITIONS -- EACH WITH ITS PENAL IMPLICATION AND ITS DIFFICULTY
- PENAL IMPLICATION
- DESERT requires genuine
- hard to reconcile with
- ALTERNATIVE POSSIBILITIES

DECISIVE DISTINCTION
- responsibility = REASONS
- must DISTINGUISH
- RESPONSIVE CONTROL,
- CONSTRAINED AGENCY
- WITHOUT metaphysical

EVALUATION / TRAP
- WHAT DETERMINISTIC EXPLANATION CAN AND CANNOT DO
- CAN → MITIGATE (reduce the severity desert permits)
- CAN → REDIRECT (punitive → protective/rehabilitative, within limits)
- CANNOT → ERASE the INTENTIONAL / RECKLESS / NEGLIGENT / ACCIDENTAL distinction, which turns
- on KNOWLEDGE and CONTROL -- and deterministic explanation does not equalise those across cases

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: THE COST TO STATE HONESTLY where a PROTECTIVE rationale replaces a DESERT rationale, the DESERT CEILING disappears with it -- so a purely dangerousness-based system may detain LONGER than the wrong ever warranted.

05

STAGE 05

THE SIX THEORY FAMILIES ON FOUR AXES

THE SIX THEORY FAMILIES ON FOUR AXES | CENTRAL TEST | PUNISH BECAUSE | CULPABLE WRONGDOING | / EXCESS | DESERVES A | THREATEN OR IMPOSE | USING THE

CULPABLE WRONGDOING	/ excess		
penalty to REDUCE	PREVENTION	offender	
FUTURE OFFENDING	as a MEANS		
INCAPACITATIVE	DANGEROUS offender	and RISK	or
to PROTECT OTHERS	discrimin		
REHABILITATIVE	CAPACITIES and	TION	ism;

SYSTEM / DOCTRINE
- CENTRAL TEST
- punish because
- CULPABLE WRONGDOING
- / excess
- deserves a

DECISIVE DISTINCTION
- to PROTECT OTHERS
- REFORMATIVE /
- CAPACITIES and
- CONDITIONS for
- neglect of

EVALUATION / TRAP
- victim, offender,
- DENUNCIATORY /
- PUBLICLY CONDEMN
- the wrong and
- / PUBLIC

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: PARTICIPATORY PROCESS inside which restitution may be one outcome.

06

STAGE 06

THE THREE JUSTIFICATORY LOGICS AND THE STRUCTURED MIXED THEORY

THE THREE JUSTIFICATORY LOGICS AND THE STRUCTURED MIXED THEORY | WHAT IS OWED | DESERVED SUFFERING | BECAUSE OF | DESERT, RIGHTS | STILL NEEDS A | CULPABLE WRONG | PUBLIC INSTITU

LOGIC	CENTRAL QUESTION	THEORIES	NON-NEGOTIABLE
DEONTOLOGICAL	what is OWED	retribution,	DESERVED SUFFERING
because of	desert, rights,	STILL NEEDS A	
CULPABLE WRONG	proportionality	PUBLIC INSTITU	
and EQUAL AGENCY?	TIONAL PURPOSE		
CONSEQUEN	which response	deterrence,	UTILITY ALONE can

SYSTEM / DOCTRINE
- CENTRAL QUESTION
- what is OWED
- DESERVED SUFFERING
- because of
- desert, rights,

DECISIVE DISTINCTION
- PREVENTS FUTURE
- TARGET INNOCENTS
- HARM at LEAST
- or PERMIT
- JUSTIFIED COST?

EVALUATION / TRAP
- REPAIRS while
- THE MIXED THEORY THE TWO GRIDS MAKE AVAILABLE
- CONSEQUENTIALIST about the INSTITUTION'S GENERAL AIM
- DEONTOLOGICAL in the CONSTRAINTS on LIABILITY and AMOUNT
- RELATIONAL in the MANNER of ADDRESS and REPAIR

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: it uses whichever component supports the conclusion it wants".

07

STAGE 07

RETRIBUTIVISM -- KANT, HEGEL AND THE LIMITING REPLY

RETRIBUTIVISM -- KANT, HEGEL AND THE LIMITING REPLY | THE ARGUMENT IN FOUR STEPS | [1] CRIME ASSERTS A MAXIM INCOMPATIBLE WITH EQUAL RIGHT | [2] IMPUTABLE AGENCY MAKES THE OFFENDER ANSWERABLE -- ADDRESSED | RATIONAL AGENT, NOT MANAGED AS A HAZARD | [3] A PROPORTIONATE LEGAL RESPONSE PUBLICLY DENIES THE WRONGFUL | PUNISHMENT NEGATES THE CRIME'S WRONGFUL CLAIM; IT RESTORES RIGHT | [4] PUNISHMENT THEREFORE EXPRESSES RESPECT FOR RIGHT, NOT PRIVATE

THE ARGUMENT IN FOUR STEPS → [1] CRIME ASSERTS A MAXIM INCOMPATIBLE WITH EQUAL RIGHT → [2] IMPUTABLE AGENCY MAKES THE OFFENDER ANSWERABLE -- addressed as a → RATIONAL AGENT, not managed as a HAZARD → [3] A PROPORTIONATE LEGAL RESPONSE PUBLICLY DENIES THE WRONGFUL MAXIM

DOCTRINE / CLAIM
- THE ARGUMENT IN FOUR STEPS
- [1] CRIME ASSERTS A MAXIM INCOMPATIBLE WITH EQUAL RIGHT
- [2] IMPUTABLE AGENCY MAKES THE OFFENDER ANSWERABLE -- addressed as a
- RATIONAL AGENT, not managed as a HAZARD
- [3] A PROPORTIONATE LEGAL RESPONSE PUBLICLY DENIES THE WRONGFUL MAXIM

OBJECTION / PRESSURE
- the injured party
- a PUBLIC, IMPARTIAL AUTHORITY
- intensity of grievance
- PROPORTIONATE DESERT
- none intrinsic

REPLY / RESIDUAL
- These are PROHIBITIONS, not COMMANDS.
- RESIDUE -→ [i] the Q1 GAP survives: why the STATE, rather than no one?
- [ii] the CARDINAL ANCHOR must come from OUTSIDE desert (Panel 11)
- [iii] a penalty INSIDE the ceiling may still be administered
- DEGRADINGLY -- humane institutions need a separate account

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: [4] PUNISHMENT THEREFORE EXPRESSES RESPECT FOR RIGHT, NOT PRIVATE REVENGE.

08

STAGE 08

DETERRENCE -- PRESUPPOSITIONS AND TWO LOCATED FAILURES

DETERRENCE -- PRESUPPOSITIONS AND TWO LOCATED FAILURES | PUNISHMENT IS JUSTIFIED BY THE EXPECTED REDUCTION OF FUTURE | HARM. SPECIFIC DETERRENCE ADDRESSES THE OFFENDER | GENERAL DETERRENCE ADDRESSES OTHERS | FOUR PRESUPPOSITIONS -- EACH IS A PLACE THE ARGUMENT | PERSONS RESPOND TO PERCEIVED | FAILS FOR THE IMPULSIVE | INTOXICATED, COERCED, IDEOLOGICALLY

JUSTIFICATION → punishment is justified by the EXPECTED REDUCTION OF FUTURE → HARM. SPECIFIC DETERRENCE addresses THE OFFENDER → GENERAL DETERRENCE addresses OTHERS → FOUR PRESUPPOSITIONS -- EACH IS A PLACE THE ARGUMENT CAN FAIL → persons respond to PERCEIVED

SOURCE / DOCTRINE
- JUSTIFICATION → punishment is justified by the EXPECTED REDUCTION OF FUTURE
- HARM. SPECIFIC DETERRENCE addresses THE OFFENDER
- GENERAL DETERRENCE addresses OTHERS
- FOUR PRESUPPOSITIONS -- EACH IS A PLACE THE ARGUMENT CAN FAIL
- persons respond to PERCEIVED

ARGUMENT / MECHANISM
- employment and trust is ignored
- LESS HARMFUL ALTERNATIVES are
- FAILS where regulation, civil
- liability or design would serve
- BENTHAM → all punishment is an EVIL, justified only by PREVENTING A GREATER

IMPLICATION / VERDICT
- RESIDUE -→ a rights constraint that admits NO AGGREGATION must still say what happens in genuine CATASTROPHE cases
- FAILURE TWO -- LOCATED AT Q3 (HOW MUCH?)
- PURE DETERRENCE PERMITS ESCALATION WITHOUT CEILING: if harsher deters more, the theory has NO INTERNAL RESOURCE to say STOP.
- Beccaria's calibration is a
- PRUDENTIAL correction, not a PRINCIPLED ceiling.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: COUNTER -→ the protection is therefore CONTINGENT ON DISCOVERY. A SECRET injustice, or a POPULAR one, escapes the objection while remaining an injustice. RIGHTS THAT HOLD ONLY WHEN OBSERVED.

09

STAGE 09

PREVENTION AGAINST REFORM, AND THE FOUR BOUNDS

PREVENTION AGAINST REFORM, AND THE FOUR BOUNDS | TWO FORWARD-LOOKING FAMILIES THAT ARE ROUTINELY MERGED | RESTRAIN A DANGEROUS | TRANSFORM CAPACITIES AND CONDITIONS FOR OFFENDER TO PROTECT OTHERS | LAWFUL AGENCY | NECESSITY AND RISK | A SOURCE OF | AN AGENT WHOSE CAPACITIES CAN

PREVENTIVE /	REFORMATIVE / REHABILITATIVE	
RESTRAIN a dangerous	TRANSFORM capacities and conditions for offender to protect others	LAWFUL AGENCY
TEST: necessity and RISK	TEST: REINTEGRATION	
OFFENDER = a SOURCE OF	OFFENDER = an AGENT whose capacities can	
RISK to be CONTAINED	be REBUILT	
DANGER: indefinite or	DANGER: PATERNALISM; compulsory	

SYSTEM / DOCTRINE
- TWO FORWARD-LOOKING FAMILIES THAT ARE ROUTINELY MERGED
- PREVENTIVE /
- REFORMATIVE / REHABILITATIVE
- RESTRAIN a dangerous
- TRANSFORM capacities and conditions for offender to protect others

DECISIVE DISTINCTION
- DISCRIMINATORY confinement
- "treatment"; NEGLECT OF VICTIMS
- ALONE: loses the DESERT
- ALONE: loses PROPORTIONALITY, since
- intervention tracks NEED, not DEED

EVALUATION / TRAP
- [ii] CONSENT WHERE POSSIBLE
- [iii] REVIEW -- no open-ended intervention
- [iv] RIGHTS -- retained throughout
- UNDER THESE FOUR CONDITIONS, REFORM IS IN TUNE WITH DIGNITY.
- WITHOUT THEM, IT IS NOT. <- THE OWNED 2021 STEM IN ONE BOX

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: [4] PUNISHMENT SHOULD THEREFORE PRESERVE A ROUTE BACK TO MEMBERSHIP.

10

STAGE 10

PROPORTIONALITY -- ORDINAL, CARDINAL AND JUVENILES

PROPORTIONALITY -- ORDINAL, CARDINAL AND JUVENILES | TWO QUESTIONS THAT ARE NOT THE SAME QUESTION | ORDINAL PROPORTIONALITY | RANKS PENALTIES BY SERIOUSNESS. A RELATIVE QUESTION. RELIABLY SUPPLIED | CARDINAL PROPORTIONALITY | ASKS HOW SEVERE THE ENTIRE SCALE MAY BE. AN | ABSOLUTE QUESTION. NOT SUPPLIED BY DESERT; NEEDS AN ANCHOR | DIGNITY, HUMANE TREATMENT, THE PROHIBITION OF DEGRADATION.

1	SERIOUSNESS OF HARM	OFFENCE-CENTRED
2	INTENTION AND UNDERSTANDING	JOINS offence to offender
3	DEVELOPMENTAL CAPACITY and	OFFENDER-CENTRED
4	PROSPECTS OF REFORM	OFFENDER-CENTRED / FORWARD
5	PROCEDURAL RELIABILITY	INSTITUTIONAL -- systematically

SYSTEM / DOCTRINE
- TWO QUESTIONS THAT ARE NOT THE SAME QUESTION
- ORDINAL PROPORTIONALITY → RANKS penalties by SERIOUSNESS. A RELATIVE question. RELIABLY supplied by DESERT INTUITIONS.
- CARDINAL PROPORTIONALITY → asks HOW SEVERE THE ENTIRE SCALE MAY BE. An
- ABSOLUTE question. NOT supplied by desert; needs an ANCHOR FROM OUTSIDE
- DIGNITY, HUMANE TREATMENT, the PROHIBITION OF DEGRADATION.

DECISIVE DISTINCTION
- of the crime." Do you agree that while punishing a JUVENILE the
- NATURE OF THE CRIME should be considered?
- THE TRAP: it offers a PRINCIPLE EVERYONE ACCEPTS, then asks whether it settles a case IT DOES NOT SETTLE.
- FIVE FACTORS MORAL ASSESSMENT MUST DISTINGUISH
- SERIOUSNESS OF HARM

EVALUATION / TRAP
- WEAKER for young accused
- VERDICT SHAPE → THE NATURE OF THE CRIME IS RELEVANT BUT NOT CONCLUSIVE .
- Reduced and developing agency ALTERS CULPABILITY even where harm is GRAVE.
- INTEGRATE the offence-centred and offender-centred perspectives; do NOT
- BALANCE them: capacity is an INPUT INTO CULPABILITY, not a COUNTERWEIGHT.

MECHANISM / VERDICT — ADJUSTING THE SENTENCE IS THEREFORE AN APPLICATION OF THE PRINCIPLE.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CONTESTED -→ a GENERAL RULE for juveniles, CASE-BY-CASE mitigation for adults.

11

STAGE 11

HART'S THREE QUESTIONS AND THE TWO-LEVEL THEORY

HART'S THREE QUESTIONS AND THE TWO-LEVEL THEORY | FITS WELL | FITS BADLY | WHY SHOULD THE INSTITUTION | PURE RETRIBUTION | OF PUNISHMENT EXIST AT ALL? | STRUGGLES TO EXPLAIN | WHY THE STATE MUST

QUESTION	FORMULATION	FITS WELL	FITS BADLY
Q1	WHY should the INSTITUTION	FORWARD	PURE RETRIBUTION
GENERAL	of punishment exist AT ALL?	LOOKING	struggles to explain
JUSTIFY	prevention,	why the STATE must	
ING AIM	protection,	inflict deserved	
security	suffering		

SYSTEM / DOCTRINE
- FITS WELL
- FITS BADLY
- WHY should the INSTITUTION
- PURE RETRIBUTION
- of punishment exist AT ALL?

DECISIVE DISTINCTION
- act, only to
- the extent
- of CULPABIL
- the HOW MUCH punishment is
- AMOUNT /

EVALUATION / TRAP
- CONSEQUENTIALIST IN AIM, RETRIBUTIVIST IN CONSTRAINT
- [6] this DISSOLVES the classical dilemma without conceding that either PURE theory is adequate
- THE PRESUPPOSITION THAT MUST BE STATED the AIM of an institution and the
- PRINCIPLES GOVERNING ITS APPLICATION can COME APART WITHOUT INCOHERENCE
- A PURE RETRIBUTIVIST DENIES THIS, so it must be argued, not assumed

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: RESIDUE -→ this commits the theory to RULE-LEVEL evaluation and inherits the standing difficulty of rule-based consequentialism.

12

STAGE 12

FEINBERG -- THE EXPRESSIVE DIFFERENTIA

FEINBERG -- THE EXPRESSIVE DIFFERENTIA | THE PUZZLE A PARKING FINE, A TAX AND A | TREATMENT. SO DOES A FINE ON CONVICTION. WHAT MAKES | NOT SEVERITY | SOME PENALTIES ARE HEAVIER THAN SOME PUNISHMENTS | NOT THE AUTHORITY | THE SAME BODY MAY IMPOSE BOTH | THE DIFFERENTIA IS SYMBOLIC PUNISHMENT CONVEYS THE COMMUNITY'S RESENTMENT

SOURCE / DOCTRINE
- THE PUZZLE A PARKING FINE, A TAX and a LATE-FILING FEE all impose HARD
- TREATMENT. So does a FINE ON CONVICTION. What makes the second a PUNISHMENT and the first three MERE PENALTIES?
- NOT SEVERITY → SOME PENALTIES ARE HEAVIER THAN SOME PUNISHMENTS
- NOT THE AUTHORITY → the same body may impose both
- THE DIFFERENTIA IS SYMBOLIC punishment conveys the community's RESENTMENT,

ARGUMENT / MECHANISM
- FOUR THINGS ONLY THIS ACCOUNT EXPLAINS
- [1] WRONGFUL CONVICTION is a distinct and grave wrong EVEN IF COMPENSATED
- THE CONDEMNATION CANNOT BE REFUNDED
- [2] the FORM of punishment matters: DEGRADING punishments are objectionable INDEPENDENTLY OF
- [3] ACQUITTAL is not merely RELEASE but VINDICATION

IMPLICATION / VERDICT
- (whether THIS condemnation is warranted).
- It STRENGTHENS the critique of misdirected condemnation, since an unwarranted conviction inflicts an UNWARRANTED CONDEMNATION -- a DISTINCT
- RESIDUE -→ where enforcement is SELECTIVE, the system EXPRESSES that some persons' wrongs are the community's business and others' are not.
- SELECTIVE ENFORCEMENT BECOMES A SYMBOLIC WRONG.
- POSITION ON THE GRID Q1 = authoritative CENSURE

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: REPLY -→ HARD TREATMENT makes the condemnation CREDIBLE and NON-CHEAP, and distinguishes a PUBLIC VERDICT from MERE DISAPPROVAL.

13

STAGE 13

DUFF -- COMMUNICATION, PENANCE AND STANDING TO PUNISH

DUFF -- COMMUNICATION, PENANCE AND STANDING TO PUNISH | FROM EXPRESSION ABOUT THE OFFENDER TO COMMUNICATION WITH HIM | EXPRESSIVE (FEINBERG) | COMMUNICATIVE (DUFF) | SOCIETY EXPRESSES | AN ADDRESS THAT | INVITES A RESPONSE | OFFENDER AS

AXIS	EXPRESSIVE (Feinberg)	COMMUNICATIVE (Duff)
DIRECTION	ONE-WAY: society EXPRESSES	TWO-WAY: an ADDRESS that
condemnation	INVITES A RESPONSE	
OFFENDER AS	the OBJECT of judgment	a RATIONAL PARTICIPANT
AIM	authoritative DENUNCIATION	REPENTANCE, REFORM,
HARD TREATMENT	the VEHICLE of CREDIBLE	a SECULAR PENANCE -- a

DOCTRINE / CLAIM
- FROM EXPRESSION ABOUT THE OFFENDER TO COMMUNICATION WITH HIM
- EXPRESSIVE (Feinberg)
- COMMUNICATIVE (Duff)
- ONE-WAY: society EXPRESSES
- TWO-WAY: an ADDRESS that

OBJECTION / PRESSURE
- and gives repentance
- PUBLIC FORM
- THE ARGUMENT IN FIVE STEPS
- [1] citizens OWE ONE ANOTHER AN ACCOUNT of their conduct
- [2] a CRIMINAL TRIAL is a process of CALLING TO ACCOUNT, not merely of

REPLY / RESIDUAL
- REPLY THAT KILLS IT: "many
- that reply is IRRELEVANT: the question poor people do not offend"
- is whether THE ACCUSER MAY ACCUSE if true, it MITIGATES
- if true, it CHALLENGES THE STANDING OF
- THE PUNISHER

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: [5] therefore punishment is justified as COMMUNICATIVE PENANCE.

14

STAGE 14

FOUCAULT -- DISCIPLINE, PANOPTICISM AND THE COMPULSORY CAVEAT

FOUCAULT -- DISCIPLINE, PANOPTICISM AND THE COMPULSORY CAVEAT | A GENEALOGY OF PENAL POWER -- NOT A THEORY | DISCIPLINE AND PUNISH (1975 FRENCH; 1977 ENGLISH TRANSLATION) | THE HISTORICAL SHIFT | PUNISHMENT AS PUBLIC SPECTACLE INFLICTED ON THE BODY OF | PUNISHMENT AS DISCIPLINE | ORDERING, OBSERVATION, TIMETABLING | TRAINING, NORMALISATION OF SUBJECTS

A GENEALOGY OF PENAL POWER -- NOT A THEORY OF JUSTIFICATION → DISCIPLINE AND PUNISH (1975 French; 1977 English translation) → THE HISTORICAL SHIFT → PUNISHMENT AS PUBLIC SPECTACLE inflicted on the BODY of the condemned → PUNISHMENT AS DISCIPLINE: ORDERING, OBSERVATION, TIMETABLING

SOURCE / DOCTRINE
- A GENEALOGY OF PENAL POWER -- NOT A THEORY OF JUSTIFICATION
- DISCIPLINE AND PUNISH (1975 French; 1977 English translation)
- THE HISTORICAL SHIFT
- PUNISHMENT AS PUBLIC SPECTACLE inflicted on the BODY of the condemned
- PUNISHMENT AS DISCIPLINE: ORDERING, OBSERVATION, TIMETABLING,

ARGUMENT / MECHANISM
- AN ARCHITECTURE OF PERMANENT, ASYMMETRICAL VISIBILITY IN WHICH THE
- OBSERVED CANNOT VERIFY WHETHER THEY ARE BEING WATCHED AT ANY GIVEN
- MOMENT -- SO SURVEILLANCE IS INTERNALISED AND THE SUBJECT
- DISCIPLINES HERSELF.
- THE APPARATUS'S POWER LIES IN THE POSSIBILITY OF OBSERVATION, NOT

IMPLICATION / VERDICT
- [2] [!] The FUNCTIONAL CLAIM is CONTESTED -- a thesis, not a finding.
- [3] [X] Do NOT attach panopticism to ANY named contemporary TECHNOLOGY.
- DATABASE, PROGRAMME or GOVERNMENT. It is an ANALYTICAL MODEL; NO empirical claim is made here about ANY surveillance practice ANYWHERE.
- OBJECTION → if POWER CONSTITUTES SUBJECTS, the resources for CRITICISING penal power are unavailable; the critique UNDERCUTS ITSELF
- REPLY --→ RESISTANCE IS CO-EXTENSIVE WITH POWER, and the aim is to make

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: INTENSIFIED CONTROL -- a direct qualification of Panel 10. JUDGE AIMS BY.

15

STAGE 15

RESTORATIVE JUSTICE AND BRAITHWAITE'S TWO KINDS OF SHAMING

RESTORATIVE JUSTICE AND BRAITHWAITE'S TWO KINDS OF SHAMING | SIX AXES ON WHICH RESTORATIVE PROCESS DIFFERS FROM CONVENTIONAL | CRIME IS | A BREACH OF LAW, AN | A HARM TO PERSONS AND | OFFENCE AGAINST THE STATE | WHICH LAW WAS BROKEN | WHO WAS HURT, WHAT DO THEY

AXIS	RETRIBUTIVE/CONVENTIONAL	RESTORATIVE
CRIME IS	a BREACH OF LAW, an	a HARM TO PERSONS AND
offence against the STATE	RELATIONSHIPS	
CENTRAL	which law was broken,	who was HURT, what do they
QUESTION	who did it, what do they	NEED, whose OBLIGATION is
DESERVE?	it to REPAIR?	

SYSTEM / DOCTRINE
- SIX AXES ON WHICH RESTORATIVE PROCESS DIFFERS FROM CONVENTIONAL
- CRIME IS
- a BREACH OF LAW, an
- a HARM TO PERSONS AND
- offence against the STATE

DECISIVE DISTINCTION
- DIRECTLY INVOLVED as a
- BRAITHWAITE'S MECHANISM -- SHAME THE ACT, KEEP THE PERSON
- STIGMATISING SHAMING
- REINTEGRATIVE SHAMING condemns THE OFFENDER
- condemns THE ACT

EVALUATION / TRAP
- POSITION ON THE GRID Q1 = REPAIR of harm and RESTORATION of relationships
- Q2 = liability STILL requires an ADMITTED OR PROVED VOLUNTARY WRONG, so restoration is NOT a licence to BYPASS GUILT
- Q3 = measured by WHAT REPAIR
- REQUIRES rather than WHAT DESERT PERMITS -- EXACTLY where the PROPORTIONALITY objection BITES
- THREE OBJECTIONS, THREE REPLIES

MECHANISM / VERDICT — GROUPS. THE THEORY'S MOST SERIOUS LIMITATION. STATE IT.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: THE LAYERED VERDICT -- THE BEST CLOSING AVAILABLE IN THE CLAUSE.

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STAGE 16

CORRUPTION I -- ENTRUSTED POWER AND THE FIVE WRONGS

CORRUPTION I -- ENTRUSTED POWER AND THE FIVE WRONGS | THE MISUSE OF ENTRUSTED PUBLIC OR INSTITUTIONAL POWER | THROUGH PARTIAL, CONCEALED OR IMPROPERLY EXCHANGED ADVANTAGE | SUBVERTING THE NORM THAT OFFICE SHOULD SERVE ITS JUSTIFIED | WIDER THAN BRIBERY | BRIBERY (IMPROPER EXCHANGE) | FAVOURITISM (PARTIAL ALLOCATION) | NEPOTISM (PARTIALITY BY KINSHIP)

CORRUPTION = THE MISUSE OF ENTRUSTED PUBLIC OR INSTITUTIONAL POWER

THROUGH PARTIAL, CONCEALED OR IMPROPERLY EXCHANGED ADVANTAGE → SUBVERTING THE NORM THAT OFFICE SHOULD SERVE ITS JUSTIFIED PURPOSE. → WIDER THAN BRIBERY → BRIBERY (improper exchange)

SOURCE / DOCTRINE
- CORRUPTION = THE MISUSE OF ENTRUSTED PUBLIC OR INSTITUTIONAL POWER
- THROUGH PARTIAL, CONCEALED OR IMPROPERLY EXCHANGED ADVANTAGE,
- SUBVERTING THE NORM THAT OFFICE SHOULD SERVE ITS JUSTIFIED PURPOSE.
- WIDER THAN BRIBERY → BRIBERY (improper exchange)
- FAVOURITISM (partial allocation)

ARGUMENT / MECHANISM
- [analysis] HONEST ACTION COSTLY and collective trust FRAGILE
- WHY FIVE AND NOT ONE → EACH SURVIVES THE FAILURE OF THE OTHERS. Even where
- NO ONE IS MEASURABLY WORSE OFF, [1] and [3] STILL HOLD → which is
- how corruption passes the PUBLIC-WRONG FILTER (Panel 2) WITHOUT an identifiable injured party.
- THE OWNED 2025 STEM: "Corrupt practices reveal an INHERENT TENSION between

IMPLICATION / VERDICT
- [2] public office is ENTRUSTED FOR A SPECIFIED COMMON PURPOSE
- [3] using office to discharge PRIVATE LOYALTY imposes costs on
- UNREPRESENTED CITIZENS
- [4] CORRUPTION OCCURS WHEN A LEGITIMATE PARTICULAR LOYALTY IS ACTED UPON
- IN A ROLE GOVERNED BY UNIVERSAL PUBLIC STANDARDS

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: THE CHARACTERISATION THAT EARNS THE VERDICT MARK the tension is between.

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STAGE 17

CORRUPTION II -- DIAGNOSIS, REGIMES AND REMEDIES

CORRUPTION II -- DIAGNOSIS, REGIMES AND REMEDIES | THE OWNED 2022 STEM | SYSTEMIC ISSUE OR ETHICAL ISSUE? | ETHICAL DIAGNOSIS | SYSTEMIC DIAGNOSIS | GREED, DISHONESTY | OPACITY, MONOPOLY, EXCESSIVE WEAK INTEGRITY | DISCRETION, IMPUNITY

ETHICAL DIAGNOSIS	SYSTEMIC DIAGNOSIS	
CAUSE: greed, dishonesty,	CAUSE: OPACITY, MONOPOLY, EXCESSIVE weak integrity	DISCRETION, IMPUNITY
FOCUS: CHARACTER, CHOICE	FOCUS: INCENTIVES, INSTITUTIONAL	
REMEDY: MORAL EDUCATION,	REMEDY: TRANSPARENCY, AUDIT, COMPETITION,	
PROFESSIONAL ETHOS	ACCOUNTABILITY	
REGIME TYPE AFFECTS → INFORMATION	ACCOUNTABILITY	COMPETITION

SYSTEM / DOCTRINE
- THE OWNED 2022 STEM: SYSTEMIC ISSUE OR ETHICAL ISSUE?
- ETHICAL DIAGNOSIS
- SYSTEMIC DIAGNOSIS
- CAUSE: greed, dishonesty,
- CAUSE: OPACITY, MONOPOLY, EXCESSIVE weak integrity

DECISIVE DISTINCTION
- DEMOCRACY → may EXPOSE it, yet ALSO GENERATE PATRONAGE, CAMPAIGN-FINANCE and CAPTURE risks
- REGIME TYPE AFFECTS → INFORMATION
- OUTCOMES ALSO DEPEND ON → INSTITUTIONAL DESIGN
- SOCIAL INEQUALITY
- OF OFFICE

EVALUATION / TRAP
- WITH A DEMONSTRATED, FORESEEABLE HARM-CHAIN; OTHERWISE USE STRUCTURAL
- HARM .
- FOR: diffuse victims, cumulative harm, invisible causal chains, abuse of institutional power.
- AGAINST: CONCEPTUAL INFLATION erases the distinctive AGENCY and INTENT of PHYSICAL mass violence -- and a concept covering
- THE OWNED 2018 STEM: MEASURES TO ERADICATE CORRUPTION

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: the stem invites a LIST. [OK] GIVE THE PRINCIPLE THAT.

18

STAGE 18

MASS VIOLENCE -- MECHANISMS AND RESPONSIBILITY

MASS VIOLENCE -- MECHANISMS AND RESPONSIBILITY | DEFINITION MASS VIOLENCE | LARGE-SCALE VIOLENCE AGAINST POPULATIONS PRODUCED THROUGH ORGANISED COERCION, COLLECTIVE | PARTICIPATION. IT INCLUDES, BUT IS WIDER THAN, GENOCIDE. | SIX MECHANISMS BY WHICH ORDINARY PEOPLE PARTICIPATE | [1] DEHUMANISATION VICTIMS REPRESENTED AS CONTAMINANTS, THREATS OR | [2] MORAL EXCLUSION .. ORDINARY RESTRAINTS WITHDRAWN FROM AN | [3] DIFFUSION OF RESPONSI- EACH PARTICIPANT TREATS AGENCY AS

DEFINITION MASS VIOLENCE = LARGE-SCALE VIOLENCE AGAINST POPULATIONS produced through ORGANISED COERCION, COLLECTIVE MOBILISATION or

PARTICIPATION. It INCLUDES, but is WIDER THAN, GENOCIDE. → SIX MECHANISMS BY WHICH ORDINARY PEOPLE PARTICIPATE → [1] DEHUMANISATION victims represented as CONTAMINANTS, THREATS or

SOURCE / DOCTRINE
- DEFINITION MASS VIOLENCE = LARGE-SCALE VIOLENCE AGAINST POPULATIONS produced through ORGANISED COERCION, COLLECTIVE MOBILISATION or CASCADING
- PARTICIPATION. It INCLUDES, but is WIDER THAN, GENOCIDE.
- SIX MECHANISMS BY WHICH ORDINARY PEOPLE PARTICIPATE
- [1] DEHUMANISATION .... victims represented as CONTAMINANTS, THREATS or
- [2] MORAL EXCLUSION .... ordinary restraints WITHDRAWN from an OUT-GROUP

ARGUMENT / MECHANISM
- DO NOT BEAR IDENTICAL RESPONSIBILITY.
- THE FIVE KINDS OF COLLECTIVE RESPONSIBILITY -- THE DECISIVE GRID
- ATTACHES TO
- CRIMINAL GUILT
- this person PLANNED,

IMPLICATION / VERDICT
- PERPETRATOR'S OWN REASONING.
- RESIDUE [!] → political responsibility is WEAKEST for citizens who had NO
- EFFECTIVE VOICE, on whom it may fall MOST HEAVILY though they were LEAST
- ABLE TO PREVENT the wrong
- RELIGIOUSLY FRAMED VIOLENCE -- THREE DISTINCTIONS

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: THE CONTROLLING RULE → GUILT IS INDIVIDUAL; RESPONSIBILITY ADMITS OF.

19

STAGE 19

GENOCIDE -- LEMKIN, THE CONVENTION, AND THE GROUP AS SUCH

GENOCIDE -- LEMKIN, THE CONVENTION, AND THE GROUP AS SUCH | HOW THE CONCEPT WAS CONSTRUCTED | 1944 LEMKIN, AXIS RULE IN OCCUPIED EUROPE [SCHOLARLY WORK] | LEMKIN'S CONCEPTION | A COORDINATED PLAN OF DIFFERENT ACTIONS AIMING AT THE | GROUP, WITH THE AIM OF ANNIHILATING THE GROUP ITSELF. | 1948 GENOCIDE CONVENTION (INTERNATIONAL INSTRUMENT) | SPECIFIED ACTS + INTENT TO DESTROY, IN WHOLE OR

HOW THE CONCEPT WAS CONSTRUCTED → 1944 LEMKIN, AXIS RULE IN OCCUPIED EUROPE [SCHOLARLY WORK] coins GENOCIDE from Greek genos (race → LEMKIN'S CONCEPTION → a COORDINATED PLAN OF DIFFERENT ACTIONS aiming at the DESTRUCTION OF THE → GROUP, with the aim of ANNIHILATING THE GROUP ITSELF. → TARGETS INCLUDE political and social institutions, culture, language, national feeling, religion, economic existence, personal security

SOURCE / DOCTRINE
- HOW THE CONCEPT WAS CONSTRUCTED
- 1944 LEMKIN, AXIS RULE IN OCCUPIED EUROPE [SCHOLARLY WORK] coins GENOCIDE from Greek genos (race, tribe) + Latin -cide
- LEMKIN'S CONCEPTION → a COORDINATED PLAN OF DIFFERENT ACTIONS aiming at the DESTRUCTION OF THE ESSENTIAL FOUNDATIONS OF THE LIFE OF A
- GROUP, with the aim of ANNIHILATING THE GROUP ITSELF.
- TARGETS INCLUDE political and social institutions, culture, language, national feeling, religion, economic existence, personal security, liberty, health and

ARGUMENT / MECHANISM
- [6] the wrong is IRREDUCIBLE to the AGGREGATE of the individual murders that may compose it
- PRESUPPOSITION [!] → groups have a MORALLY SIGNIFICANT EXISTENCE not
- EXHAUSTED by the aggregate of their members' interests. MUST BE ARGUED
- INDIVIDUALIST moral theories DENY it and would locate the entire wrong in the murders.
- FOUR NEIGHBOURING CONCEPTS -- DISTINGUISHED BY FEATURE, NOT SCALE

IMPLICATION / VERDICT
- REDUNDANCY → "if the killings are already the gravest crimes, 'genocide' adds a LABEL"
- REPLY: the ADDITIONAL wrong is THE DESTRUCTION OF A FORM
- OF SHARED LIFE -- a language, a tradition of transmission, a community of memory -- a loss
- to SURVIVORS, to THOSE NEVER BORN INTO IT, and arguably to HUMANITY, NOT captured by counting murders
- PROOF → "SPECIFIC INTENT makes it nearly impossible to prove, so the concept PROTECTS PERPETRATORS"

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: [5] therefore a DISTINCT CATEGORY is required, whose defining element is the.

20

STAGE 20

CAPITAL PUNISHMENT -- ARGUMENT TREE AND CUSTODY TEST

CAPITAL PUNISHMENT -- ARGUMENT TREE AND CUSTODY TEST | DEFINITION THE STATE'S INTENTIONAL EXECUTION OF A CONVICTED OFFENDER. | HARDEST CASE BECAUSE PUNISHMENT BECOMES IRREVERSIBLE AND ELIMINATES THE | SUBJECT WHOSE RESPONSIBILITY, REFORM AND RIGHTS GROUND PENAL THEORY. | THE ARGUMENT TREE | [1] RETRIBUTION [OK] | [1] FALLIBILITY AND IRREVERSIBILITY EXCEPTIONALLY GRAVE CULPABLE | [OK] -- WRONGFUL EXECUTION CANNOT KILLING MAY DESERVE THE

FOR	AGAINST		
[1] RETRIBUTION [OK]	[1] FALLIBILITY AND IRREVERSIBILITY exceptionally grave culpable	[OK] -- WRONGFUL EXECUTION CANNOT killing may DESERVE the	BE REPAIRED gravest proportionate response
[2] DETERRENCE [?] -- may	[2] HUMAN DIGNITY [OK] -- the state deter BEYOND LIFE IMPRISON	CONTRADICTS ITS OWN CONDEMNATION OF	
MENT; an EMPIRICAL claim that	KILLING by deliberately		
CANNOT BE ASSUMED	extinguishing a RESTRAINED person		
[3] INCAPACITATION [OK]	[3] DETERRENCE UNCERTAINTY [?] -- permanently prevents	comparative claims are EMPIRICALLY reoffending, THOUGH SECURE	CONTESTED; the argument MUST STATE

SYSTEM / DOCTRINE
- DEFINITION the state's INTENTIONAL EXECUTION of a CONVICTED offender. THE
- HARDEST CASE because punishment becomes IRREVERSIBLE and ELIMINATES THE
- SUBJECT whose RESPONSIBILITY, REFORM and RIGHTS GROUND PENAL THEORY.
- THE ARGUMENT TREE
- [1] RETRIBUTION [OK]

DECISIVE DISTINCTION
- THE OWNED 2025 STEM: CAN THE RIGHT TO LIFE BE ABSOLUTE? -- FOUR MOVES IN ORDER
- [1] THE RIGHT TO LIFE IS NOT TREATED AS ABSOLUTE EVEN BY ITS DEFENDERS
- SELF-DEFENCE and NECESSITY are accepted limits. A right can be
- FUNDAMENTAL WITHOUT BEING EXCEPTIONLESS. [X] asserting absoluteness chooses the WEAKEST premise and is refuted by one counter-example.
- [2] SO THE QUESTION IS WHETHER CUSTODIAL KILLING MEETS THE SAME CONDITIONS

EVALUATION / TRAP
- ESTABLISHED → the available route is the IRREVERSIBILITY + FALLIBILITY
- UNEQUAL-ADMINISTRATION chain, which attacks the CONDITIONS OF
- DESERT-TRACKING rather than desert itself.
- THE OWNED 2019 STEM: DOES IT WEAKEN SOCIAL JUSTICE? -- THREE VARIABLES
- PROPORTIONALITY → seriousness is NECESSARY but NOT SUFFICIENT; culpability, mitigation, consistency and ALTERNATIVES matter

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: SOCIAL JUSTICE → a penalty administered THROUGH UNEQUAL SOCIAL CONDITIONS can MAGNIFY INJUSTICE even where its ABSTRACT RULE is NEUTRAL (condition 7,.

21

STAGE 21

THE INTEGRATED ANSWER SPINE, THE EVIDENCE BANK AND THE LEDGER

THE INTEGRATED ANSWER SPINE, THE EVIDENCE BANK AND THE | DIRECTIVE DECODER -- THE VERB FIXES THE STRUCTURE | COMPULSORY STRUCTURAL MOVE | FAILURE MODE | MORALISING INSTEAD OF | KEY DISTINCTION | LISTING THE THEORY | CATALOGUE WITH NO

DIRECTIVE DECODER -- THE VERB FIXES THE STRUCTURE → COMPULSORY STRUCTURAL MOVE → FAILURE MODE → statement → premises → → MORALISING instead of

SOURCE / DOCTRINE
- DIRECTIVE DECODER -- THE VERB FIXES THE STRUCTURE
- COMPULSORY STRUCTURAL MOVE
- FAILURE MODE
- statement → premises →
- MORALISING instead of

ARGUMENT / MECHANISM
- RESIDUAL PROBLEM → VERDICT separating PHILOSOPHICAL VALIDITY from
- IMPLEMENTATION and from EMPIRICAL EFFECT
- 20 MARKS (~300 words, 8 moves, ~25 min) → state WHAT MAKES THE CASE
- DIFFICULT (desert vs consequence vs dignity) → SEPARATE Q1/Q2/Q3 → the competing theories in their STRONGEST form →
- rights, dignity, culpability, proportionality APPLIED → TWO objection→reply chains, one using FALLIBILITY, DIFFERENTIATED RESPONSIBILITY or STANDING → the

IMPLICATION / VERDICT
- LAYERED → desert fixes the LIMITS, condemnation the MEANING, communication the ADDRESS, restoration the REPAIR; retribution vs reform is a FALSE
- QUESTION-SEPARATING → the institution is justified by PREVENTION; its application is constrained by DESERT; the dilemma DISSOLVES
- FALLIBILITY → even granting desert, an IRREVOCABLE penalty administered by a FALLIBLE and UNEQUALLY
- APPLIED process cannot satisfy the very principle of PROPORTIONATE DESERT offered to justify it
- STANDING → legitimacy is CONDITIONAL on the JUSTICE OF THE ORDER that imposes it

MECHANISM / VERDICT — 10 MARKS (~150 words, 4 moves, ~12 min) → PRECISE CONCEPT in technical vocabulary → ARGUMENT as numbered premises + the ONE distinction the stem turns on → ONE EVIDENCE UNIT with its LIMITATION → GRADED VERDICT stating the CONTROLLING PRINCIPLE. [X] do NOT run the theory catalogue.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CRITICAL-QUALIFICATION -- reformative language is NOT SELF-VALIDATING; a regime can INTENSIFY CONTROL while calling itself REHABILITATIVE, so.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT | A1. COMMUNICATIVE CENSURE AND COERCIVE DELIVERY — THE OPTIONAL | A2. RESTORATIVE PRACTICE AT SCALE, AND VICTIM INEQUALITY | A3. COLLECTIVE AND COMMAND RESPONSIBILITY IN TRANSITIONAL SETTINGS | A4. ABOLITION AGAINST TIGHTLY CONSTRAINED RETENTION | A5. THE STRONGEST ADDITIONAL OBJECTION AND REPLY | A6. SAFE INDIAN DEPLOYMENT IN A 15- OR 20-MARKER | A7. PROMOTION STATUS AND SOURCE TRAIL

OPTIONAL SOURCE WITNESS
- A1. Communicative censure and coercive delivery — the optional residue
- A2. Restorative practice at scale, with victim inequality
- A3. Collective and command responsibility in transitional settings
- A4. Abolition against tightly constrained retention

ADVANCED OBJECTION
- A5. The strongest additional objection and reply
- A6. Safe Indian deployment in a 15- or 20-marker
- A7. Promotion status and source trail
- Everything needed to answer any of the twelve owned parts is already in the

COMPARATIVE NUANCE
- Basic block, and the Basic block is answer-complete without a single line from here.
- Use one item at most in a 15- or 20-marker, and only where the stem has created room for it.
- NOT: Nothing here repairs missing core content, and importing it into a short answer will cost more time than it earns marks.
- Communicative censure and coercive delivery — the optional residue CAUTION: Duff's communicative account is Core in this owner, not enrichment.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels